

Court No. - 21

Case :- WRIT - C No. - 524 of 2013

Petitioner :- Chandrika

Respondent :- The State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Parameshwar Yadav

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Zaki Ullah Khan,J.

The petitioner has filed the present Writ Petition, inter-alia, praying for quashing the Electricity Bill dated 30.09.2012 (Annexure-1 to the Writ Petition).

From the averments made in the Writ Petition, it appears that the petitioner is having the electricity connection bearing Connection No. 437561. A Bill dated 30.09.2012 (Annexure-1 to the Writ Petition) has been issued to the petitioner for the period from 30.06.2012 to 31.08.2012. In the said Bill, various amounts have been shown in respect of the arrears of Electricity Charges etc. and Surcharge.

The petitioner is disputing the correctness of the aforesaid Bill.

We have heard Sri Parmameshwar Yadav, learned counsel for the petitioner and Sri Maboob Ahmad, learned counsel for the respondent Nos. 2,3 and 4.

Sri Mahboob Ahmad, learned counsel for the respondent Nos. 2, 3 and 4, submits that the grievance of the petitioner is in regard to correctness of the aforesaid Bill issued to the petitioner. Sri Mahboob Ahmad further submits that the petitioner has alternative remedy of filing complaint before the Competent Authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Sri Mahboob Ahmad, learned counsel for the respondent nos. 2, 3 and 4 further submits that the Competent Authority in the present case is the Executive Engineer concerned (respondent No. 3).

Having regard to the facts and circumstances of the case, and having considered the submissions made by learned counsel for the parties, and keeping in view the nature of controversy involved in the present Writ Petition, we are of the view that the interest of justice would be sub-served by disposing of the present Writ Petition with the

following directions:

1. Within six weeks from today, the petitioner will submit a representation/ complaint before the respondent no. 3 along with certified copy of this order, as well as copy of the aforesaid Bill dated 30.09.2012.

2. On receipt of such representation/ complaint along with the documents mentioned above, the respondent No. 3 will proceed to consider and decide the matter expeditiously, preferably within a period of six weeks of the receipt of the said representation/ complaint, after giving reasonable opportunity of hearing to the petitioner and by passing speaking order.

3. Till 12th April, 2013 or till the disposal of the representation/ complaint submitted by the petitioner, the petitioner will not be compelled to pay the amount of the Electricity Bill dated 30.09.2012 subject to the condition that within six weeks from today, the petitioner will deposit a sum of Rs. 20,000/- with the respondent no. 3.

In the event of default on the part of the petitioner in making the deposit as directed above, this interim order will stand automatically vacated.

The Writ Petition is accordingly disposed of with the above directions.

It is made clear that this Court has not adjudicated the claim of the petitioner on merits.

Order Date :- 8.1.2013
v.k.updh.